



Delaware County Council Meeting January 25th 2022

Meeting Metadata	Details
Video Recording	https://www.youtube.com/watch?v=rzwygMxPYWc
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Delaware County Council Meeting Summary

Meeting Date: January 25, 2022

Location: Delaware County Commissioner's Courtroom, Muncie, Indiana

1. Meeting Identification & Attendance

- **Call to Order:** Presiding Officer [00:01:11](#) Scott Alexander called the regular meeting of the Delaware County Council to order at approximately [00:00:04](#).
- **Attendance:**
 - **Members Present:** Mr. Ballard, Ms. Chambers, Ms. Lasseter, Ms. Piper, Mr. Quakenbush, Mr. Webb, and Mr. Alexander.
 - **Members Absent:** None explicitly noted.
 - **Presiding Officer:** Mr. Alexander.

2. Preliminary & Procedural Business

- **Ceremonial Openings:** The meeting opened with the Pledge of Allegiance [00:00:22](#).
- **Approval of Agenda:** The agenda was approved as amended to include a correction to the spelling of "f-r-e-e-z-e" and the addition of public comment [03:03:04](#). Approved by roll call vote.

- **Approval of Minutes:** Minutes from the December 14th regular meeting and January 6th special meeting were approved [03:53:00](#). Approved by roll call vote.
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3. Substantive Business & Board Action

- [00:04:41](#) **Tabled ARP Appropriation (\$1.6 Million):**
 - **Sponsor / Presenter:** County administration / Commissioners.
 - **Deliberation Summary:** Discussion regarding the employee retention bonuses funded by the American Rescue Plan (ARP). Council members reviewed updated lists and legal parameters provided by counsel. Clarification was made regarding part-time and seasonal worker eligibility.
 - **Action & Vote Disposition:** Removed from table and **Approved** by roll call vote [00:21:23](#).
- [\[021:51\]](#) **2022 Encumbrances:**
 - **Sponsor / Presenter:** Auditor's office / Donna.
 - **Deliberation Summary:** Routine approval of 2022 encumbrances.
 - **Action & Vote Disposition:** **Approved** by roll call vote [\[022:32\]](#).
- [\[022:47\]](#) **Financial Transfers & Salary Ordinance Amendments:**
 - **Sponsor / Presenter:** Various department heads (Court Administration, Probation, 911, GIS, Building/Unsafe Building).
 - **Deliberation Summary:** Detailed discussion regarding staff transitions, probation officer start dates, line-item adjustments, and ARP administrative fee transfers (\$200,000 for administrative software/tracking). An amendment to adjust pre-trial screening and probation officer line items was approved [03:35:36](#).
 - **Action & Vote Disposition:** Transfers and salary ordinance amendments as amended were **Approved** by roll call vote [01:00:36](#).
- [01:01:09](#) **Interlocal Agreement with City of Muncie & Prosecutor:**
 - **Sponsor / Presenter:** Prosecutor / Eric.
 - **Deliberation Summary:** Interlocal agreement regarding staffing for the High-Tech Crime Unit, assigning a Muncie police sergeant full-time to the prosecutor's office, with the county contributing \$50,000 annually from state high-tech crime funds.
 - **Action & Vote Disposition:** **Approved** by roll call vote [01:03:15](#).
- [\[065:58\]](#) **Board Appointments & Liaisons:**
 - **Sponsor / Presenter:** Council President / Denise.
 - **Deliberation Summary:** Reappointment of current members willing to serve additional terms across various county boards. Discussion ensued regarding public application processes.
 - **Action & Vote Disposition:** **Approved** by roll call vote [01:11:18](#).
- [03:01:25](#) **Motion to Research Tax Abatement Rescission (Meadowforge Solar Project):**

- **Sponsor / Presenter:** Mr. Quakenbush / Mr. Webb.
 - **Deliberation Summary:** Following intense public comment regarding the Meadowforge solar project tax abatement previously approved in October, council members discussed community concerns, lack of early notice, and legal pathways.
 - **Action & Vote Disposition:** Motion directing county council attorney Mr. Hughes to research and bring forth statutory documentation to rescind the tax abatement.
Approved by roll call vote (Ms. Lasseter abstained) **03:02:08**.
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4. Open Public Comment / Citizen Forum

(Note: Public comment heavily focused on the proposed Meadowforge solar energy project, tax abatements, lack of community notification, and property/environmental impacts.)

- **02:38:48 James Wermer:** Spoke against the solar ordinance and proposed solar project, criticizing the lack of community notification and holding meetings during daytime hours.
- **02:41:02 Brent Collins:** Addressed the Council regarding the Economic Revitalization Area (ERA) designation for highly productive agricultural land producing high crop yields.
- **02:43:44 Jason Reed (Attorney):** Representing a group of property owners, raised legal red flags regarding the tax abatement, lack of an ERA definition match for productive farmland, minimal job creation (2 jobs), and flaws in the Baker Tilly economic report.
- **02:54:45 Tim Nickim:** Questioned council members regarding their awareness of a weekend informational meeting at Wes-Del High School and the lack of official attendance.
- **02:58:25 David Mock:** Expressed frustration over the lack of early public notice regarding the solar project and feeling blindsided by the timeline.
- **02:01:35 Brittany Mock:** Spoke emotionally about her property being directly impacted and surrounded by the proposed solar installation, questioning the layout maps and lack of neighbor notification.
- **02:06:52 Jackie Sheets:** Played audio of inverter noise, raised concerns about fire hazards and setbacks, and questioned conflict of interest rules regarding board members.
- **02:14:35 Tommy Landis:** Shared personal impacts of living in the footprint of the proposed solar project, loss of nature/wildlife (e.g., eagles), and drainage concerns.
- **02:19:16 Ryan Richards:** Highlighted high crop yields on local farmland and questioned why tax abatements are given to heavily subsidized energy companies.
- **02:23:53 Stephanie Wells (Hoosiers for Renewables):** Spoke in favor of the Meadowforge project, emphasizing economic benefits and farm income diversification.
- **02:26:38 Christopher Bilbrey:** Criticized the council's decorum regarding threats to shut down public comment and urged officials to better represent public interest over rubber-stamping.

- **02:30:30 Andrew Pagn:** Thanked officials for resolving the COVID retention bonus issue and inquired procedurally about the process to rescind a tax abatement.
 - **02:33:36 Tom Schroeder (Invenergy):** Addressed the Council, stating the company is working on layout adjustments, planning an upcoming open house in February, and mailing contact letters to neighbors.
 - **02:37:49 Kyle D. UereTZ (Attorney for Invenergy):** Provided legal context supporting the council's legislative discretion in approving the ERA and tax abatement in Autumn 2021.
 - **02:56:01 Mike Mock:** Challenged company representatives to publicly show the detailed layout maps of how the solar panels will surround local residents' homes.
 - **02:59:30 Unidentified Resident (Gaston area):** Spoke on community divisions and tensions caused by the solar project leasing.
 - **03:04:03 Marcy Bunch:** Spoke about the emotional impact on students and community members seeing farmland replaced by industrial solar.
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5. Administrative Updates & Adjournment

- **Department Head Reports:**
 - **Sheriff Tony Skinner** provided his annual update **01:23:38**, reporting pension fund growth (\$21.8M), jail food costs (\$1.51 per meal, 338,000+ meals served), steady inmate population increases, high training hours per deputy, and \$490,000 generated by housing out-of-county and DOC inmates.
 - **Announcements:**
 - Notice given of an upcoming Plan Commission public meeting regarding solar setbacks on **February 3, 2022, at 6:00 PM** at the Delaware County Justice Center auditorium **03:36:12**.
 - **Adjournment:** Official motion to adjourn made by Mr. Webb, seconded by Ms. Piper.
Approved by Voice Vote / unanimous roll call **03:38:12**.
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